

Calendar Line # 4
Case Name Curtis Edwad McGovert vs Q2 Fiber Communications Inc. et al
Case No. 25CV456187
Motion to Compel Responses to For Interrogatories, Special Interrogatories, and Request for Production of Documents, Set One and Sanctions
<u>I. BACKGROUND</u> This case stems from a January 13, 2023, motor-vehicle incident. On January 9, 2025, Plaintiffs Curtis Edward McGovert, and Maile Rose McGovert, a minor, by and through her Guardian Ad Litem, Marilyn Javier Gil (collectively “Plaintiffs”) filed a Complaint alleging two causes of actions and seeking damages against Defendants Q2 Fiber Communications Inc. (“Q2 Fiber”), and Derik Ryan Punneo (collectively “Defendants”). Before the Court is Defendant Q2 Fiber’s motion to compel verified responses to form interrogoatires (“FROG”), special interrogoatires (“SROG”), request for production of documents (“RFPD”), set one, and sanctions that was filed on March 2, 2026. The motion is accompanied by a proof of service indicating electronic mail service on Plaintiffs’ counsel of record. The motion to compel is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 19, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). The Court has carefully reviewed the following: notice of motion to compel (totaling 4 pages), memorandum of points and authorities (totaling 8 pages); Declaration of Jiaxun Fu and attached Exhibits A- C (totaling 41 pages); proof of service; and the pleadings. <u>II. LEGAL STANDARD</u> Purusant to Code of Civil Procedure section 2030.260(a), a party must respond to interrogatories within 30 days after service. If a party to whom interrogatories are directed does not provide a timely response, the propounding party may move for an order compelling response to the interrogatories. (<i>Id.</i>, § 2030.290, subd. (b)). There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (<i>Id.</i>; see also, <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 411). Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1)). In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2030.290, subd. (a)). A party must respond to interrogatories and document requests under oath. (Code Civ. Proc., §§ 2020.010(a), 2030.210(a); 2031.250(a)). An unverified discovery response is treated as no response. (<i>Steele v. Totah</i> (1986) 180 Cal.App.3d 545, 549; <i>Appleton v. Sup. Ct.</i> (1988) 206 Cal.App.3d 632, 636-37). In such a case, the propounding party may seek to compel verified responses. (<i>Id.</i>). Code of Civil Procedure section 2015.5 provides that a verification must be signed under penalty of perjury and state the date and place of execution. “[C]ourts do not find compliance with section 2015.5 to be both substantial and sufficient unless all statutory conditions appear on the face of the declaration in some form.” (<i>Kulshrestha v. First Union Commercial Corp.</i> (2004) 33 Cal.4th 601, 612). California courts have taken a liberal approach to permissible discovery, which has led the courts to resolve any doubt in favor of permitting discovery. (<i>Pacific Tel. & Tel. Co. v. Superior Court</i> (1970) 2 Cal.3d 161, 173 (“In accordance with the liberal policies underlying the discovery procedures, California courts have been broad-minded

in determining whether discovery is reasonably calculated to lead to admissible evidence). (*Id.* at 172; *see also*, *Pettie v. Superior Court* (1960) 178 Cal.App.2d 680, 687). As a practical matter, it is difficult to define at the discovery stage what evidence will be relevant at trial. Therefore, the party seeking discovery is entitled to substantial leeway. (*Pacific Tel. & Tel. Co., supra*, 2 Cal.3d at p. 172). The courts have taken the view if an error is made in ruling on a discovery motion, it is better that it be made in favor of granting discovery of the non-discoverable rather than denying discovery of information vital to preparation or presentation of the party's case or to efficacious settlement of the dispute.” (*Norton v. Superior Court* (1994) 24 Cal.App.4th 1750, 1761).

“As a general matter, the statutory scheme imposes no obligation on a party propounding interrogatories to establish good cause or prove up the merits of any underlying claims.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 550). Indeed, a litigant “is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.” (*Id.* at p. 541, citing *West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 422).

III. ANALYSIS

Here, Defendant Q2 served initial discovery including FROG, SPROG, RFPD, set one on September 26, 2025 on Plaintiff’s counsel. (Declaration of Fu, ¶ 2; Exhibit A). Plaintiff’s responses to initial discovery were due on October 28, 2025. (Declaration of Fu, ¶ 3). On October 27, 2025, a day before responses were due, Plaintiff’s counsel requested a two-week extension to respond to discovery. (*Id.*). Defendant Q2 agreed, but requested that Plaintiff’s counsel confirm via letterhead. (*Id.*). Plaintiff’s counsel provided no further response and the defense states that no extension was agreed upon. (*Id.*). Defendant Q2 argues that even if an extension was provided, responses were due by November 11, 2025. (*Id.*; Exhibit B). Defense counsel sent a meet-and-confer email on November 14, 2025 informing Plaintiff’s counsel that if responses were not received by November 21, 2025, Defendant Q2 would seek a motion to compel. (Declaration of Fu, ¶ 4; Exhibit C). Defense counsel sent final correspondence on February 23, 2026, demanding responses within seven days. (*Id.*, at ¶ 5). As of March 2, 2026, Defendant Q2 did not receive any response to initial discovery. (*Id.*, at ¶ 6).

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2030.290(c), when a party moves to compel initial responses to interrogatories, “the court ***shall*** impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes [the motion], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.290, subd. (c)(emphasis added)). The court shall impose a monetary sanction against the party who unsuccessfully makes or opposes a motion to compel further responses to interrogatories or demand for production of documents unless the party subject to the sanction acted with substantial justification or the sanction would otherwise be unjust. (Code of Civ. Proc., §§ 2030.300, subd. (d), 2031.310, subd. (h), 2033.290, subd. (d)).

Defendant Q2 requests sanctions in the amount of \$3,060.00.00 because Defendant failed to provide verified response to FROG, SPROG, and RFPD, set one that resulted in the instant motion. (Declaration of Fu, ¶ 7). Defendant Q2’s counsel seeks \$2,100.00 for seven (7) hours of working drafting and preparing the motion at the hourly rate of \$300.00; \$900.00 for three (3) hours of anticipated time to prepare and attend a hearing on the matter at the hourly rate of \$300.00; and \$60.00 in filing fees.

The Court notes that no opposition papers were filed, thus no time required for review of an opposition or prepare a reply brief. Further, an appearance on an unopposed motions prospective. The Court also finds this motion to be straight forward. Accordingly, the GRANTS five hours of time expended on the motion at the requested hourly

rate of \$300.00 as well as the \$60.00 in costs for filing fees. Thus, the sanctions is awarded in the total amount of \$1,560.00.

V. CONCLUSION

Based on the foregoing, the Court GRANTS the motion to compel verified responses to FROGS, SPROGs, RFPD, set one. Plaintiffs is ORDERED to provided verifications to the response to FROGS, SPROGs, RFPD, set one within thirty (30) days from this hearing. The Court GRANTS sanctions against Plaintiffs in the amount of \$1,560.00. Defendant is to pay the sanctions amount within thirty (30) days from this hearing.

The Court will prepare the formal Order.

Calendar Line # 5

Case Name Kourosh Zahedi et al vs Volkswagen Group of America, Inc.

Case No. 25CV462288

Motion Judgment on the Pleadings

Before the court is defendants Volkswagen Group of America, Inc. and Stevens Creek Audi's motion for judgment on the pleadings. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

On March 27, 2025, Plaintiffs Kourosh Zahedi and La Patisserie Bakery (collectively, "Plaintiffs") filed this case that arises from the Song-Beverly Consumer Warranty Act (Civ. Code, § 1790, et seq; the "Act" or "Song-Beverly") against defendants Volkswagen Group of America, Inc. ("Volkswagen") and Stevens Creek Audi ("Stevens Creek"; collectively, "Defendants").

Plaintiffs allege to have purchased a 2023 Audi E-tron under warranty on March 31, 2023 (the "Subject Vehicle"). (Complaint, ¶¶ 8, 10). Before Plaintiffs purchased the Subject Vehicle, Volkswagen knew that vehicles equipped with the same battery system as the Subject Vehicle suffered from defects that included, inter alia, loss of propulsion power while driving, sudden and premature battery failure, failure to start, and reduced range (the "Battery Defect"). (*Id.* at ¶ 56). Plaintiffs delivered the Subject Vehicle to Stevens Creek for substantial repair on at least one occasion, but Stevens Creek failed to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards. (*Id.* at ¶¶ 48, 50).

Plaintiffs allege the following causes of action: (1) violation of Civil Code section 1793.2, subdivision (d) (against Volkswagen); (2) violation of Civil Code section 1793.2, subdivision (b) (against Volkswagen); (3) violation of Civil Code section 1793.2, subdivision (a)(3) (against Volkswagen); (4) breach of the implied warranty of merchantability (against Volkswagen); (5) negligent repair (against Stevens Creek); and (6) fraudulent inducement – concealment (against Volkswagen).

Defendants filed the instant motion for judgment on the pleadings on March 11, 2026.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 438(f), a defendant's motion for judgment on the pleadings may be made after the time to demur has expired and an answer has been filed. Under a Code of Civil Procedure section 438(c), a motion by a defendant may be made on the grounds that (1) the court "lacks jurisdiction of the subject of one or more of the causes of action alleged" or (2) the complaint or cross-complaint "does not state facts sufficient to constitute a cause of action against that defendant." A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. Except as provided by statute, the rules governing demurrers apply. (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999). "A